

UNITED STATES DEPARTMENT OF AGRICULTURE
BEFORE THE SECRETARY OF AGRICULTURE

In re:

Tanner Burks,
an individual, and

Candace Green,
an individual,

Respondents.

HPA Docket No. 23-J-0060

HPA Docket No. 23-J-0061

REC'D - USDA/OALJ/HCO
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CONSENT DECISION AND ORDER

Appearances:

John Rodriguez, Esq., and Thomas Bolick, Esq., Office of the General Counsel, United States Department of Agriculture, Washington, D.C., for the Complainant, the Administrator of the Animal and Plant Health Inspection Service ("APHIS");

Jack Heffington, Esq., and Brandy Arena, Esq., for the Respondents (named in the case caption above).

Before Tierney Carlos, Administrative Law Judge

This proceeding was instituted under the Horse Protection Act, as amended (15 U.S.C. §§ 1821-1831) ("Act" or "HPA"), by a complaint filed by the Administrator of the Animal and Plant Health Inspection Service ("Complainant"), alleging that Respondent Tanner Burks and Respondent Candace Green ("Respondents") violated the Act. Complainant and Respondents have agreed that this proceeding should be terminated by the entry of this Consent Decision and Order, and have thereby agreed to the following stipulations:

Respondents admit the jurisdictional allegations in the Complaint; specifically admit that the Secretary has jurisdiction in this matter; neither admit nor deny the remaining allegations in the Complaint; waive oral hearing and all further procedures Respondents may be entitled to under

the law; waive any and all rights or defenses the Respondents have or might have for the matter to be adjudicated in a federal district court in the first instance, including any associated right to a jury trial; waive all rights to seek judicial review and otherwise challenge or contest the validity of this Consent Decision and Order, including waiving challenges to the Administrative Law Judge's authority to enter this Consent Decision and Order under the Administrative Procedure Act and the Constitution of the United States; and waive any action against the USDA under the Equal Access to Justice Act of 1980 (5 U.S.C. § 504 *et seq.*) for fees and other expenses incurred by Respondents in connection with this proceeding or any action against any USDA employee(s) in their individual capacity.

The parties consent and agree to the entry of this Consent Decision and Order for the purpose of settling this proceeding. This Consent Decision and Order is entered pursuant to the consent decision provisions (7 C.F.R. § 1.138) of the Rules of Practice applicable to this proceeding.

FINDINGS OF FACT

1. Tanner Burks (hereinafter, Respondent Burks) is an individual whose home address is in the State of Tennessee.
2. Candace Green (hereinafter, Respondent Green) is an individual whose home address is in the State of Tennessee.
3. At all times mentioned herein, Respondents were "person[s]" and "exhibitor[s]," as those terms are defined in the Regulations issued pursuant to the Act (9 C.F.R. § 11.1).

4. On or about August 25, 2022, Respondent Burks entered a horse known as Balboa, for the purpose of showing the horse in the 84th Annual Tennessee Walking Horse National Celebration, a horse show in Shelbyville, Tennessee.

5. On or about September 2, 2022, Respondent Burks transported a horse known as Punisher, for the purpose of showing the horse in the 84th Annual Tennessee Walking Horse National Celebration, a horse show in Shelbyville, Tennessee.

6. On or about September 2, 2022, Respondent Burks entered a horse known as Punisher, for the purpose of showing the horse in the 84th Annual Tennessee Walking Horse National Celebration, a horse show in Shelbyville, Tennessee.

7. On or about September 2, 2022, Respondent Green entered a horse known as Punisher, for the purpose of showing the horse in the 84th Annual Tennessee Walking Horse National Celebration, a horse show in Shelbyville, Tennessee.

8. On or about November 12, 2022, Respondent Burks entered a horse known as Polly Gray, for the purpose of showing the horse in the United Walking Horse Fall Finale, a horse show in Tunica, Mississippi.

9. On or about November 12, 2022, Respondent Green entered a horse known as Polly Gray, for the purpose of showing the horse in the United Walking Horse Fall Finale, a horse show in Tunica, Mississippi.

CONCLUSION OF LAW

Respondents having admitted the findings of fact set forth above, and the parties having agreed to the entry of this Consent Decision and Order, such Consent Decision and Order will be entered.

ORDER

1. Respondent Burks is disqualified for a period of eighteen (18) months from (a) showing, exhibiting, and/or entering any horse in any horse show,¹ horse exhibition,² horse sale or horse auction,³ (b) judging, and/or managing any horse show, horse exhibition, horse sale or horse auction, and (c) otherwise participating in any horse show, horse exhibition, horse sale or horse auction, directly or indirectly through any agent, employee, corporation, partnership, business or other device. "Participating" means engaging in any activity beyond that of a spectator and includes, without limitation, transporting or arranging for the transportation of horses to or from equine events, personally giving instructions to exhibitors, being present in the warm-up or inspection areas or in any area where spectators are not allowed, and financing the participation of others in equine events. The eighteen (18) month disqualification period shall begin on September 1, 2025.

2. Respondent Burks is assessed a civil penalty in the amount of three thousand five hundred (\$3,500) dollars, which shall be paid in full within thirty (30) days of the effective date of this Consent Decision and Order. The three thousand five hundred (\$3,500) dollar civil penalty shall be paid by a certified check or money order made payable to the "Treasurer of the United States" and mailed to:

USDA-APHIS-GENERAL (HPA Docket No. 23-J-0060)
P.O. Box 979043
St. Louis, Missouri 63197-9000

¹ "Horse show" means a public display of any horses, in competition, except events where speed is the prime factor, rodeo events, parades, or trail rides. 9 C.F.R. § 11.1.

² "Horse exhibition" means a public display of any horses, singly or in groups, but not in competition, except events where speed is the prime factor, rodeo events, parades, or trail rides. 9 C.F.R. § 11.1.

³ "Horse sale or horse auction" means any event, public or private, at which horses are sold or auctioned, regardless of whether or not said horses are exhibited prior to or during the sale or auction. 9 C.F.R. § 11.1.

Respondent Burks shall write the docket number of this proceeding, HPA Docket No. 23-J-0060, on the certified check or money order.

3. If Respondent Burks fails to pay the civil penalty set forth in Paragraph 2 above, or if any amount of said civil penalty remains unpaid at the end of the eighteen (18) month disqualification period set forth in Paragraph 1 above, Respondent Burks shall continue to be disqualified from all of the activities set forth in Paragraph 1 unless and until the civil penalty is paid in full.

4. Respondent Green is disqualified for a period of eleven (11) months from (a) showing, exhibiting, and/or entering any horse in any horse show,⁴ horse exhibition,⁵ horse sale or horse auction,⁶ (b) judging, and/or managing any horse show, horse exhibition, horse sale or horse auction, and (c) otherwise participating in any horse show, horse exhibition, horse sale or horse auction, directly or indirectly through any agent, employee, corporation, partnership, business or other device. "Participating" means engaging in any activity beyond that of a spectator and includes, without limitation, transporting or arranging for the transportation of horses to or from equine events, personally giving instructions to exhibitors, being present in the warm-up or inspection areas or in any area where spectators are not allowed, and financing the participation of others in equine events. The eleven (11) month disqualification period shall begin on September 1, 2025.

5. Respondent Green is assessed a civil penalty in the amount of ten (\$10) dollars, which shall be paid in full within thirty (30) days of the effective date of this Consent Decision

⁴ "Horse show" means a public display of any horses, in competition, except events where speed is the prime factor, rodeo events, parades, or trail rides. 9 C.F.R. § 11.1.

⁵ "Horse exhibition" means a public display of any horses, singly or in groups, but not in competition, except events where speed is the prime factor, rodeo events, parades, or trail rides. 9 C.F.R. § 11.1.

⁶ "Horse sale or horse auction" means any event, public or private, at which horses are sold or auctioned, regardless of whether or not said horses are exhibited prior to or during the sale or auction. 9 C.F.R. § 11.1.

and Order. The ten (\$10) dollar civil penalty shall be paid by a certified check or money order made payable to the "Treasurer of the United States" and mailed to:

USDA-APHIS-GENERAL (HPA Docket No. 23-J-0061)
P.O. Box 979043
St. Louis, Missouri 63197-9000

Respondent Green shall write the docket number of this proceeding, HPA Docket No. 23-J-0061, on the certified check or money order.

6. If Respondent Green fails to pay the civil penalty set forth in Paragraph 5 above, or if any amount of said civil penalty remains unpaid at the end of the eleven (11) month disqualification period set forth in Paragraph 4 above, Respondent Green shall continue to be disqualified from all of the activities set forth in Paragraph 4 unless and until the civil penalty is paid in full.

7. This Consent Decision and Order shall have the same force and effect as if entered after full hearing.

8. The provisions of this Consent Decision and Order shall become final and effective on the date of signature by the Administrative Law Judge.

9. Copies of this Consent Decision and Order shall be served upon the parties or their counsel.

[REDACTED]
Tanner Burks, an individual
Respondent

[REDACTED]
Candace Green, an individual
Respondent

[REDACTED]
Jack Heffington
Attorney for the Respondents

[REDACTED]
Brandy Arena
Attorney for the Respondents

LOUIS
DIVINCENTI

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DIVINCENTI
Date: 2025.07.15 09:42:56
-04'00'

Dr. Louis DiVincenti
Acting Director, Animal Welfare Operations
for the Animal Care program of APHIS

John Rodriguez

John Rodriguez
Attorney for Complainant

Thomas N. Bolick

Thomas Bolick
Attorney for Complainant

Done at Washington, D.C.

this 15th day of July, 2025

Tierney Carlos

Tierney Carlos
Administrative Law Judge

CERTIFICATE OF SERVICE

Tanner Burks and Candace Green, Respondents

Docket Nos.: 23-J-0060 & 23-J-0061

I HEREBY CERTIFY that a true and correct copy of the **PROPOSED CONSENT DECISION AND ORDER and CONSENT DECISION AND ORDER** has been furnished and was served upon the following parties on July 15, 2025, by the following:

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BrandyArena@outlook.com

Respectfully Submitted,

Marilyn T. Kennedy, Acting Hearing Clerk
USDA/OHA Office of Administrative Law Judges,
Hearing Clerk's Office
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Washington, D.C. 20250